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Case Number: 26NNCV03496 Hearing Date: August 28, 2026 Dept: T

Khatchak Barsamian

vs. Aleksandr Blyumkin

Demurrer to

Plaintiff's Complaint

Moving Party: Defendant Aleksandr

Blyumkin

Responding Party: None

Tentative Ruling: Sustain

BACKGROUND

On May 4, 2026, Plaintiff Khatchak Barsamian ("Plaintiff") filed a complaint against Defendant Aleksandr Blyumkin ("Defendant") and Doe defendants 1 through 25, alleging the following

causes of action: (1) breach of contract; (2) fraud in the inducement; (3) conversion; and (4) unjust enrichment.

Defendant now demurs to all causes of action.

No

opposition was filed. On August 21, 2026, Defendant filed a notice of Plaintiff's failure to timely oppose the demurrer. On August 27, 2026, Plaintiff filed a late opposition. The Court

exercises its discretion to consider the late-filed opposition.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at 994.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) "All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

II. Meet
and Confer

Per
the declaration of Defendant's counsel Andre Karchemsky, counsel for the parties met and conferred by telephone and were unable to resolve the issues raised by Defendant in the instant demurrer.
(Karchemsky Decl. ¶¶ 3–5.)

III. Request
for Judicial Notice

Pursuant to Defendant's request, the Court takes judicial notice of the exhibited SEC filing records.
(Evid. Code § 452, subd. (d).)
However, in taking judicial notice of these records, the Court does not take judicial notice of the truth of specific factual representations made therein but, instead, takes notice of "not only the fact of the document but also facts that can be deduced, and/or clearly derived from, its legal effect, such as the names and dates contained in the document, and the legal consequences of the document." (Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist. (2021) 62 Cal.App.5th 583, 600.)

IV. Discussion

A. Statute of Limitations

"In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred." (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 [quoting McMahon v. Republic Van & Storage Co., Inc. (1963) 59 Cal.2d 871, 874].) Although the Court notes that the complaint is devoid of any factual detail establishing the accrual of the alleged causes of action after the parties allegedly entered into a purchase agreement on March 29, 2022, as the limitations bar does not clearly and affirmatively appear on the face of the complaint, the Court finds no basis to sustain the demurrer on this ground.

B. Failure to State Sufficient Facts

In liberally construing the complaint and drawing all inferences favorable to Plaintiff, the Court finds that Plaintiff failed to state sufficient facts to constitute each of his causes of action.

As

to the first cause of action, “[t]he elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to plaintiff.” (Coles v. Glaser (2016) 2 Cal.App.5th 384, 391, internal quotations omitted.) “A written contract may be pleaded either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect. [Citation.] In order to plead a contract by its legal effect, plaintiff must ‘allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 993, citations omitted.) In pleading the existence of a contractual relationship, “the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. (Code Civ. Proc., § 430.10, subd. (g).)” (Otworth v. Southern Pac. Transportation (1985) 166 Cal.App.3d 452, 458–459.) Under this standard, the complaint fails to set forth factual allegations constituting a breach of contract cause of action. (See Compl. at p. 1–2.)

As

to the second cause of action, “[t]he elements of fraud are misrepresentation, knowledge of falsity, intent to induce reliance on the misrepresentation, justifiable reliance on the misrepresentation, and resulting damages.” (Reeder v. Specialized Loan Servicing LLC (2020) 52 Cal.App.5th 795, 803 [citing Lazar v. Superior Court (1996) 12 Cal.4th 631].) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (Lazar, supra, 12 Cal.4th at p. 645.) The particularity requirement necessitates that facts be pleaded that show how, when, where, to whom, and by what means of the representations that were allegedly tendered. (Ibid.) Given this requirement, the complaint fails to set forth particularized facts to support a claim for fraud in the inducement. (See Compl. at p. 1–2; see, e.g., Scott v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th

743, 766.)

As

to the third cause of action, “[a] cause of action for conversion requires allegations of plaintiff’s ownership or right to possession of property; defendant’s wrongful act toward or disposition of the property, interfering with plaintiff’s possession; and damage to plaintiff. [Citation.] Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment. [Citation.]” (PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal.App.4th 384, 395 [quoting McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1491].) Furthermore, “[a] ‘generalized claim for money [is] not actionable as conversion.’” (PCO, Inc., supra, at p. 395 [quoting Vu v. California Commerce Club, Inc. (1997) 58 Cal.App.4th 229, 235].) As Plaintiff failed to allege facts establishing a specific, identifiable sum of money that was converted, and instead references non-existent allegations in support of this cause of action, the Court finds that his conversion cause of action is not sufficiently pleaded. (See Compl. at p. 3.)

As

to the fourth cause of action, in construing Plaintiff’s unjust enrichment cause of action as a quasi-contract claim seeking restitution, the Court notes that “[a]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231 [quoting Lance Camper Manufacturing Corp. v. Republic Indemnity Co. (1996) 44 Cal.App.4th 194, 203].) “However, ‘restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.’ [Citation.] Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by ‘alleg[ing] in that cause of action] that the express contract is void or was rescinded.’ [Citation.]” (Rutherford Holdings, supra, at p. 231, alteration in original.) Accordingly, given his allegations, the Court finds that Plaintiff failed to sufficiently plead a quasi-contract cause of action.

Plaintiff

failed to show the court that the complaint can be amended successfully to

state these causes of action, and as the complaint is devoid of any factual details that would otherwise suggest to the Court that a reasonable possibility of stating a good cause of action exists by amending any of these causes of action, the demurrer is sustained without leave to amend as to all of his causes of action.

RULING

Defendant Aleksandr Blyumkin's Demurrer to
Plaintiff's Complaint is SUSTAINED without leave to amend.